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CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**DEFENDANT CSAA INSURANCE
EXCHANGE'S SUPPLEMENTAL BRIEF
IN SUPPORT OF THE COURT'S
JURISDICTION TO HEAR THE
DEFENDANT'S MOTION TO DECLARE
PLAINTIFF A VEXATIOUS LITIGANT**

Date: October 6, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendant CSAA INSURANCE EXCHANGE (“Defendant”) hereby submits the following
2 Supplemental Brief in support of its request for a finding that the Court retains jurisdiction to hear
3 the Defendant’s Motion to Declare Plaintiff Vexatious Litigant.

4 **I. INTRODUCTION**

5 The Court asked the parties to brief two questions: i) whether this Court currently has
6 jurisdiction to decide Defendant’s motion to declare Plaintiff a vexatious litigant while Plaintiff’s
7 appeal from the July 1, 2026 order granting Defendant’s special motion to strike (“Anti-SLAPP”) remains pending; and ii) whether *Pittman v. Beck Park Apartments, Ltd.* (2018) 20 Cal.App.5th
8 1009 controls.

9 Both questions lead to the same conclusion: the Court retains jurisdiction to hear this motion.

10 A motion under Code of Civil Procedure sections 391 and 391.3 is a collateral, ancillary
11 proceeding that does not affect the “effectiveness” of the pending appeal within the meaning of
12 section 916. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.) A fair reading of
13 *Pittman* confirms this interpretation: as in *Pittman* a vexatious-litigant motion survives even the
14 complete termination of the underlying action by voluntary dismissal, because it is “ancillary” in
15 the same sense as a motion for attorney fees or sanctions. (*Pittman, supra*, 20 Cal.App.5th at pp.
16 1022–1025.) If jurisdiction survives *dismissal*, it necessarily survives the lesser, temporary
17 interruption of an appeal that leaves the action itself pending. (Code Civ. Proc., § 1049.)

18 Analyzing the line of authorities—in the context of a fee motion, while an Anti-SLAPP
19 appeal is pending—provides further support. A trial court retains jurisdiction to make a
20 determination directly premised on—indeed, entirely dependent on—an appealed Anti-SLAPP
21 order, because that determination does not enforce, undo, or interfere with the order under review.
22 (*Doe v. Luster* (2006) 145 Cal.App.4th 139, 144, 158; *Carpenter v. Jack in the Box Corp.* (2007)
23 151 Cal.App.4th 454, 460–461.)

24 Finally, to the extent the Court is concerned that one of the requirements for requiring
25 Plaintiff to *furnish security* (i.e.: “no reasonable probability” of prevailing in case) may touch upon
26 those issues presented in the Anti-SLAPP appeal; on the contrary, determining the probability of
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1 success of Plaintiff’s claims is *downstream of* finding him to be a vexatious litigant and relates only
2 to the question of whether Plaintiff should be required to furnish security.

3 The Court can, and should, proceed to decide the motion.

4 **II. ARGUMENT**

5 **A. This Court Retains Jurisdiction Because a Vexatious Litigant Motion is a Collateral**
6 **Ancillary Proceeding**

7 Code of Civil Procedure § 916(a), stays proceedings “upon the judgment or order appealed
8 from, or upon matters embraced therein or affected thereby.” The test is functional: whether the trial
9 court proceeding would affect the “effectiveness” of the appeal—that is, whether it would enforce,
10 modify, or moot the very order under review. (*Varian, supra*, 35 Cal.4th at pp. 189–191, 195, fn. 8,
11 196–200.) An appeal does not divest the trial court of jurisdiction over a collateral matter merely
12 because that matter arises from the same lawsuit or draws on the same record. (*Id.* at p. 195, fn. 8;
13 *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938.) California courts apply this rule most often to fee,
14 cost, and sanctions determinations, which routinely proceed in the trial court while the merits are on
15 appeal. (*Bankes v. Lucas* (1992) 9 Cal.App.4th 365, 368–369 [an attorney fee award “is a collateral
16 matter which is embraced in the action but is not affected by the order from which an appeal is
17 taken”]; *Day v. Collingwood* (2006) 144 Cal.App.4th 1116, 1125–1126 [post judgment sanctions
18 motion is a collateral matter surviving appeal].)

19 A motion under sections 391 and 391.3 is the same kind of proceeding. It does not ask the
20 Court to enforce or reconsider the July 1, 2026 order; it asks the Court to make an independent,
21 forward-looking finding—whether Plaintiff, given his litigation history and the state of this and the
22 related actions, must be i) deemed a vexatious litigant; ii) required to obtain court approval for future
23 filings; and iii) required to furnish security in his multiple pending litigations. These findings can
24 be decided in full without touching whatever the Court of Appeal ultimately does with the Anti-
25 SLAPP order, and neither affirmance nor reversal of that order would undo any of the vexatious
26 litigant determinations made in the interim.

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1 **B. *Pittman v. Beck* Provides Support Stronger Than Necessary to Determine this Question**

2 *Pittman* held that a plaintiff’s voluntary dismissal—which terminates the trial court’s
3 jurisdiction over the underlying action *altogether*—does not divest the trial court of jurisdiction to
4 rule on a pending vexatious-litigant motion. (*Pittman, supra*, 20 Cal.App.5th at pp. 1022–1025.)
5 The court reasoned that, “[l]ike a motion for attorney fees or sanctions, a motion to declare a [party]
6 a vexatious litigant deals with an ancillary issue and has no bearing on the finality” of, in that case,
7 the dismissal. (*Id.* at p. 1024.) The *Pittman* Court relied on the policy underlying the vexatious-
8 litigant statute—protecting the Courts and future litigants from abusive conduct, a purpose that
9 dismissal—or, here, an appeal—does nothing to satisfy. (*Ibid.*)

10 Moreover, the plaintiff in *Pittman* attempted the same argument Plaintiff attempts here: in
11 claiming that the court “had no jurisdiction” to hear the vexatious litigant motion. The *Pittman* Court
12 squarely disagreed with that conclusion, finding jurisdiction, despite dismissal. In so concluding,
13 the *Pittman* Court noted: “courts have carved out a number of exceptions to this [no jurisdiction
14 over dismissed cases] rule in order to give meaning and effect to a former party’s statutory rights....
15 When a postdismissal or postjudgment motion involves collateral statutory rights, then the court
16 may retain jurisdiction to determine and enforce those rights.... [for example], defendants [are]
17 entitled to a ruling [after dismissal] on the merits of their SLAPP motion, the result of which will
18 necessarily determine their right to attorney fees.” (*Pittman, supra*, 20 Cal.App.5th 1009, 1022.)

19 Even more, *Pittman*’s holding reaches further than Defendant requests here because, in
20 *Pittman*, the jurisdictional event—a voluntary dismissal—removed the underlying action from the
21 court’s docket entirely. Whereas here, an appeal from the Anti-SLAPP order carries less finality: it
22 stays only matters “embraced in or affected by” that specific order, while the action itself remains
23 pending under section 1049, and section 391.1 continues to authorize a security motion “in any
24 litigation pending in any court of this state.” (Code Civ. Proc., §§ 1049, 391.1, subd. (a).) *Pittman*
25 held that a vexatious-litigant motion survives outright dismissal; therefore, it must also survive, *a*
26 *fortiori*, the narrower and temporary limitation imposed by a pending appeal of one order in the
27 case. *Pittman* therefore provides sufficient authority to answer the Court’s second question directly:
28 it applies, and it confirms jurisdiction over Defendant’s instant motion. Whereas, embracing

1 Plaintiff's reading of *Pittman*'s "ancillary" reasoning as limited only to the dismissal context ignores
2 that *Pittman*'s reasoning rests on the ancillary nature of vexatious-litigant motions and the clear
3 policy underlying § 391 et seq. of curbing abusive litigation tactics.

4 **C. This Court Can Determine That Plaintiff's Claims Have No Reasonable Probability of**
5 **Success Without Touching Upon Those Issues on Appeal**

6 This Court need not determine the probability of Plaintiff's claims prevailing, in order to
7 determine if he is a vexatious litigant. The "no reasonable probability of prevailing" requirement
8 applies only to an order requiring plaintiff to *furnish security*—not the motion to deem him
9 vexatious. (*See* Code Civ. Proc. § 391(b), *compare with*, § 391.1(a).) Defendant still maintains that
10 the Court can, and should, order both i) Plaintiff be deemed vexatious; and ii) he be required to
11 furnish security; however, the Court could decide only the first question (and require pre-filing
12 approval), to completely avoid the "no reasonable probability of prevailing" standard. However, the
13 Court can and should decide both questions.

14 Indeed, Plaintiff's claims have no "reasonable probably" of prevailing for far more reasons
15 than those argued in Defendant's Anti-SLAPP motion—presently on appeal. Specifically, Plaintiff's
16 FAC contains a host of reasons why is subject to dismissal outside of the factual allegations subject
17 to an Anti-SLAPP motion, including all those reasons argued in Defendant's filed (but mooted)
18 *Demurrer* and *Motion to Strike* (C.C.P § 436).

19 For example, as cited in Defendant's mooted Demurrer, "[a]s a general rule, a third party
20 may directly sue an insurer only when there has been an assignment of rights by, or a final judgment
21 against, the insured." (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268.) Indeed, it has long
22 been held in California that an injured third-party claimant cannot sue the opposing party's insurer
23 directly for bad faith, because that duty runs only to the insurer's own insured, not to the third-party
24 claimant. (*See Murphy v. Allstate Ins. Co.* (1976) 17 Cal.3d 937, 941-944; *accord Moradi-Shalal v.*
25 *Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 313 ["Plaintiff, having failed to obtain a
26 judicial determination of the insured's liability, is not entitled to sue [insured's insurance carrier]
27 under *Royal Globe*. Thus, the trial court's order sustaining defendant's demurrer was correct."].)

28 Indeed, here, Plaintiff does not contest that he is a third-party claimant. His entire suit against

1 CSAA constitutes an unsupportable *third-party bad faith action*—which is completely barred under
2 the above, long-standing authorities—which is decidedly not the issue on appeal of the Anti-SLAPP
3 ruling. Absent an assignment or judgment obtained against CSAA’s insured—which he never
4 obtained—Plaintiff simply cannot assert claims against CSAA. This alone allows the Court to find
5 that Plaintiff’s claims have no reasonable probability of prevailing. Even if the Anti-SLAPP is
6 somehow narrowly reversed on appeal; Defendant’s demurrer will necessarily dispense with the
7 remainder of this case.

8 Meaning, ultimately, even an order under § 391.1(a) requiring Plaintiff to furnish security
9 (only *after* finding him to be a vexatious litigant) is appropriate here.

10 **D. The Policy Underlying the Vexatious Litigant Statute, Discussed in *Pittman*, is Squarely**
11 **Implicated by Plaintiff’s Frivolous Behavior—including His Very Recent Harassment**
12 **of Defense Counsels and Continued Filings in Other Courts on the Same Issues**

13 Plaintiff squarely meets the definition of vexatious litigant. His behavior, in his now six (6)
14 pending actions in California courts, is bombastic, insulting, and completely frivolous.

15 The policy behind the vexatious litigant statute is squarely implicated by Plaintiff’s conduct
16 and litigation history. The Court in *Pittman* described that policy in clear terms:

17 Retaining jurisdiction to decide a vexatious litigant motion is consistent with the purpose of
18 the statutes, which are “designed to curb misuse of the court system by those persistent and
19 obsessive litigants who, repeatedly litigating the same issues through groundless actions, waste the
20 time and resources of the court system and other litigants.” (*Shalant v. Girardi* (2011) 51 Cal.4th
21 1164, 1169.) A dismissal does not rectify the harm already done by the filing of a groundless
22 action. Nor does the dismissal extinguish the court’s interest in deterring and punishing the waste
23 of judicial resources. A contrary rule would allow a litigant to strategically escape a vexatious
litigant finding altogether by dismissing a party or an action prior to a ruling on the vexatious litigant
motion and then refile his or her claims in a later proceeding. This is precisely the tactic *Pittman*
has engaged in here. To fulfill the statute’s aim of protecting future potential litigants, the ability to
declare an individual a vexatious litigant must survive even after the action has been dismissed.

24 (*Pittman, supra*, 20 Cal.App.5th 1009, 1024-1025.)

25 Here, Plaintiff is attempting the same end-around as the plaintiff in *Pittman*, as he is
26 continuing to file further repeat litigations. Indeed, Plaintiff has very recently lost his appeal of his
27 defense verdict loss at trial of his underlying personal injury jury trial, entitled *Rosario v.*

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1 *Abdelhalim, San Francisco County Superior Court Case No. CGC-21-594102. (See Declaration of*
2 *Tyler J. O'Connell ISO Supp. Brief, [hereinafter "O'Connell Decl.], ¶ 4 **Ex. B.**)*

3 Then, incredibly, despite this vexatious litigant motion pending, Plaintiff went ahead and
4 engaged in further vexatious conduct, by filing yet another frivolous, repeat litigation against CSAA,
5 now in Contra Costa County. (*See O'Connell Decl., ¶ 3, **Ex. A** – Plaintiff's new Contra Costa*
6 *County Complaint.*) Plaintiff's new Contra Costa Complaint alleges all the same facts as in this case
7 and was filed a misguided effort to sidestep this Court's ruling on the Anti-SLAPP motion.

8 Finally, Plaintiff's unmeritorious, frivolous, and demeaning conduct has recently reached
9 new lows in his most recent screed directed at CSAA's defense counsels. (*See O'Connell Decl., ¶*
10 *5, **Ex. C** – Plaintiff's September 21-22, 2026 email correspondences.*)

11 This Court can, and should, proceed to decide this motion on the merits to at least put some
12 reasonable limitations on Plaintiff's continued abuses and frivolous waste of judicial and party
13 resources, time, and energy.

14 **III. CONCLUSION**

15 Defendant therefore respectfully requests this Court proceed to hear, and grant, Defendant's
16 Motion to have Plaintiff Deemed A Vexatious Litigant, including all other relief as requested in the
17 Motion and Proposed Order.

18 Dated: September 22, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On September 22, 2026, I served the following document: **DEFENDANT CSAA**
7 **INSURANCE EXCHANGE'S SUPPLEMENTAL BRIEF IN SUPPORT OF THE COURT'S**
8 **JURISDICTION TO HEAR THE DEFENDANT'S MOTION TO DECLARE PLAINTIFF A**
9 **VEXATIOUS LITIGANT**

10		BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11		BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12		BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing
21 is true and correct. Executed in Sacramento, California on September 22, 2026.

22 **Monique Schubert**
23 Monique Schubert